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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW, JUSTICE AND PARLIAMENTARY AFFAIRS

NOTIFICATIONS

Islamabad, the 18th June, 2011

S. R. O. 634(I)/2011.—In pursuance of Article 100 of the Constitution of Islamic Republic of Pakistan, the President is pleased to make the following rules, namely:—

1. **Short title and commencement.**—(1) These rules may be called the Attorney-General for Pakistan (Terms and Conditions) Rules, 2011.

(2) These rules shall come into force on the 1st July, 2011.

2. **Retainership, perks and privileges, etc.**—An Attorney-General for Pakistan shall be entitled to retainership, perks and privileges as admissible to a Judge of Supreme Court which are:—

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| (a) Salary | Rs. 368,186/- ; |
| (b) Superior Judicial Allowance | Rs. 170,625/-; and |
| (c) House rent if official Residence not provided | Rs. 68,000/-. |

(2077)

(2) During the tenure of his office, the Attorney-General shall be entitled to the use of an official chauffeur driven car maintained at Government expense, but as is in the case of Judge of the Supreme Court shall have to bear the cost of petrol used in the car during a month in excess of three hundred liters.

(3) Where the Attorney-General is required, otherwise than under rule 4, to leave the Capital in the performance of his official duties, traveling and other allowances on the scale admissible to a Judge of Supreme Court on tour shall be paid to him for journey necessarily performed in the course of those duties.]

3. **Absence from office.**—During the absence, for any reason, of the Attorney-General for Pakistan the person appointed to act as Attorney-General for Pakistan, shall receive the full emoluments of the office and shall exercise all the powers and perform all the duties of the office.

4. **Duties.**—(1) It shall be the duty of the Attorney-General for Pakistan to give advice to the Federal Government upon such legal matters, and to perform such other duties of a legal character, as may be referred or assigned to him by the Federal Government and in the performance of his duties he shall have the right of audience in all courts and tribunals in Pakistan.

(2) For the performance of duties mentioned in sub-rule (1) the Attorney-General for Pakistan shall be paid no fee other than the retainerhip payable under rule 2.

5. **Appearance in courts etc.**—The Federal Government may require the Attorney-General to appear before any High Court or any tribunal in any case, suit, appeal or other proceedings in which the Federal Government is concerned and a daily fee of ten thousand rupees shall be paid to him for every day of his appearance before such court or tribunal. If such a reference requires him to be absent from his headquarters the days of his absence, not being days of departure to and return from such appearance, shall be included in the days of such appearance.

6. **Responsibilities of Attorney-General for Pakistan.**—(1) The Attorney-General for Pakistan shall not:—

- (a) engage in private practice so long as he holds the office of the Attorney-General;
- (b) advise or hold briefs against the Federal Government;
- (c) advise or hold briefs in cases in which he is likely to be called upon to advise, or appear for, the Federal Government;

- (d) defend accused persons in criminal prosecutions without the prior order or permission of the Federal Government;
- (e) accept any appointment in any company, corporation or organization owned or controlled by Federal Government, without the prior permission of the Federal Government; and
- (f) make a conceding statement unless so authorized by the Law, Justice and Parliamentary Affairs Division or with the prior approval of the Law, Justice and Parliamentary Affairs Division or the head of the administrative Division or the department concerned in writing.

7. **Repeal.**—The Ministry of Law, Justice and Parliamentary Affairs Notification No. 11(27)/50-E, dated the 3rd July, 1952 is hereby repealed.

S. R. O. 635(1)/2011.—In exercise of the powers conferred by sub-section (2) of section 2 of the Central Law Officers Ordinance, 1970 (VII of 1970), the President is pleased to make the following rules, namely:—

1. **Short title and commencement.**—(1) These rules may be called the Additional Attorney-General, Deputy Attorney-General and Standing Counsel (Terms and Conditions) Rules, 2011.

(2) These rules shall come into force at once except clause (a) of rule 2 which shall come into force on and from the 1st of July, 2011.

2. **Retainership, perks and privileges, etc.**—An Additional Attorney General, Deputy Attorney-General and Standing Counsel shall be entitled to the following retainership, perks and privileges namely:—

(a) **Additional Attorney-General**

An Additional Attorney-General shall be entitled to such retainership, perks and privileges as admissible to a Judge of the High Court specified below:—

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|--|----------------------------|
| (i) Salary | Rs. 347,345/- ¹ |
| (ii) Superior Judicial Allowance | Rs. 136,500/- ; and |
| (iii) House rent if official residence not provided | Rs. 65,000/-. |
| (iv) chauffeur driven car 1300CC capacity with twenty liters petrol and one hundred and twenty five kilogram CNG as admissible to a BS-21 Officer; | |

- (v) telephone facility, office and residence, as admissible to a BPS 21 Officer.
- (iv) traveling and other allowances, where required, in performance of his official duties to leave the place where he normally practices his profession at the rate admissible to a BS-21 Officer.

Deputy Attorney-General

Monthly retainer Rs. 150,000/- all inclusive;

chauffeur driven car 1300CC capacity with twenty liters petrol and one hundred and twenty five kilogram CNG as admissible to a BS.20 Officer;

telephone ceilings for office, no limit and residence upto one thousand five hundred rupees per month; and

- (i) traveling and other allowances, where required, in performance of his official duties to leave the place where he normally practices his profession at the rate admissible to a BS-20 Officer.

Standing Counsel

- (i) Monthly retainer Rs 100,000/- all inclusive;
- (ii) chauffeur driven car 1000CC capacity with twenty liters petrol and one hundred and twenty five kilogram CNG as admissible to a BS-20 Officer;
- (iii) telephone ceilings for office, no limit and residence upto one thousand five hundred rupees per month; and
- (iv) traveling and other allowances where required in performance of his official duties to leave the place where he normally practices his profession at the rate admissible to a BS-20 Officer.

3. **Absence from office.**—During the absence, for any reason, the Additional Attorney-General, Deputy Attorney-General or of a Standing Counsel person appointed to act as Additional Attorney-General, Deputy Attorney-General (as the case may be) as Standing Counsel shall receive the full emoluments of the office and shall exercise all the powers and perform all the duties of the office.

4. **Duties.**—(1) It shall be the duty of the Additional Attorney-General, Deputy Attorney-General and Standing Counsel,—

- (a) to advise the Federal Government on any legal matter referred to them by the Federal Government and to perform such other duties of legal character as are assigned to them from time to time by the Federal Government;
- (b) to appear on behalf of the Federal Government, if it so requires, in all cases, suits, appeals and proceedings before Supreme Court or a High Court, Federal Shariat Court or any Tribunal or Special Court constituted under any law in which the Federal Government is concerned; and
- (c) to keep inform Law, Justice and Parliamentary Affairs Division as well as the administrative Ministry/Division/Department concerned of the progress of the cases assigned to him.

(2) For the performance of duties mentioned in sub-rule (1) the Additional Attorney-General, Deputy Attorney-General and Standing Counsel shall be paid no fee other than the retainerhip payable under rule 2.

5. **Appearance in courts etc.**—(1) The Federal Government may require the Additional Attorney-General, Deputy Attorney-General and Standing Counsel to appear before Supreme Court, High Court, Federal Shariat Court or before any Tribunal, Commission or Special Court constituted under any law, in any case, suit, appeal or other proceedings in which the Federal Government is concerned.

(2) If the appearance is before any Court at a place other than the place which is his headquarters the Additional Attorney-General shall be paid a fee equal to daily allowance as admissible to a BS-21 and Deputy Attorney-General or Standing Counsel to a BS-20 Officer of the Federal Government.

(3) If appearance under sub-rule (1) requires the Additional Attorney-General, Deputy Attorney-General or Standing Counsel to be absent from his headquarters, the days of his absence, not being days of departure to and return from such appearance shall, for the purpose of sub-rule (2), be added to the days of such appearance.

6. **Responsibilities of Additional Attorney-General, Deputy Attorney General and Standing Counsel.**—The Additional Attorney-General, Deputy Attorney-General and Standing Counsel shall not,—

- (a) advise or hold briefs against the Federal Government;

- (b) advise or hold briefs in cases in which he is likely to be called upon to advise, or appear for, the Federal Government;
- (c) defend accused persons in criminal prosecutions without the prior order or permission of the Federal Government;
- (d) accept any appointment in any company, corporation or organization owned or controlled by Federal Government, without the prior permission of the Federal Government; and
- (e) make a conceding statement unless so authorized by the Law, Justice and Parliamentary Affairs Division or with the prior approval of the Law, Justice and Parliamentary Affairs Division or the head of the administrative Division or the department concerned in writing.

7. **Repeal.**—The Ministry of Law, Justice and Parliamentary Affairs Notification No. S.R.O. 557(K), dated the 18th May, 1960 is hereby repealed.

[No. F. 6 (2)/2010-A.VII.]

MUHAMMAD MASOOD CHISHTI,
Secretary.